Supreme Court has the power to issue suitable directions or orders or writs. Article 141 says that the law declared by the Supreme Court shall be binding on all courts; and Article 142 enables it, in the exercise of its jurisdiction, to pass such decree or make such order as is necessary for doing complete justice in any cause or matter pending before it. These articles are designedly made comprehensive to enable the Supreme Court to declare law and to give such directions or pass such orders as are necessary to do complete justice.

The expression 'declared' is wider than the words 'found or made'. To declare is to announce opinion. Indeed, the latter involves the process, while the former expresses result. Interpretation, ascertainment and evolution are parts of the process, while that interpreted, ascertained or evolved is declared as law. The law declared by the Supreme Court is the law of the land. If so, there is no acceptable reason why the court, in declaring the law in supersession of the law declared by it earlier, could not restrict the operation of the law, as declared, to the future and save the transactions, whether statutory or otherwise, that were effected on the basis of the earlier law. To deny this power to the Supreme Court on the basis of some outmoded theory that the court only finds law but does not make it is to make ineffective the powerful instrument of justice placed in the hands of the highest judiciary of this country."

4. Propositions of the Doctrine

The Supreme Court laid down three propositions with respect to the doctrine of prospective overruling. The court, in this context, observed as follows[72]:

"As this court for the first time has been called upon to apply the doctrine evolved in a different country, under different circumstances, it would like to move warily in the beginning and would lay down the following propositions:

(1) The doctrine of prospective overruling can be invoked only in matters arising under our Constitution;

(2) it an be applied only by the highest court of the country, i.e., the Supreme Court as it has the constitutional jurisdiction to declare a law binding on all the courts in India;

(3) the scope of the retroactive operation of the law declared by the Supreme Court superseding its earlier decisions is left to its discretion to be moulded in accordance with the justice of the cause or matter before it."

5. Rationale of the Doctrine

The Supreme Court has explained the rationale of the application of the doctrine of prospective overruling in the following way[73]:

"We have arrived at two conclusions, namely, (1) Parliament has no power to amend Part III of the Constitution so as to take away or abridge the fundamental rights; and (2) this is a fit case to invoke and apply the doctrine of prospective overruling. What then is the effect of our conclusion on the instant case? Having regard to the history of the amendments, their impact on the social and economic affairs of our country, and the chaotic situation that may be brought about by the sudden withdrawal at this stage of the amendments from the Constitution, we think that considerable judicial restraint is called for. We, therefore, declare that our decision will not affect the validity of the Constitution (Seventeenth Amendment) Act, 1964, or other amendments made to the Constitution taking away or abridging the